



POLICE DEPARTMENT

September 5, 2008

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Wilson Colon
Tax Registry No. 920143
42 Precinct
Disciplinary Case No. 82625/07

The above-named member of the Department appeared before me on July 24, 2008, charged with the following:

1. Said Police Officer Wilson Colon, assigned to the 42 Precinct, while off duty, on or about January 16, 2007, at a location known to the Department, in Bronx County, did engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in Bronx County, to wit: said Police Officer Colon did fail to appear at Queens Family Court, which resulted in his arrest on an active arrest warrant, Docket #P-12688-06.

P.G. 203-10, Page 1, Page 5 – PROHIBITED CONDUCT

The Department was represented by Debbie Coleman, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found GUILTY.

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SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Erika Baca (hereinafter "Baca") as a witness. Further entered into evidence was a copy of the Summons, Paternity Petition and Certificate of Service with a certification by the Clerk of the Court that they are true copies of the official court records, marked Department's Exhibit 1 (*DX-1*).

Erika Baca

Baca is a resident of Queens County and is employed as an administrative assistant for the Macy's Merchandising Group and has been for six years. The witness indicated that she has a 12-year-old child named Vanessa Colon in common with the Respondent.

She testified that she is familiar with the Respondent as there was a point in the past where the two were involved in a relationship. There came a point in time where she sought child support from the Respondent by filing a Petition in Queens County Family Court. Baca explained that she initiated the Family Court matter on or about June of 2006 and received a return date of August 28, 2006. She indicated that the Respondent was not in court with her on that date in June 2006, but she noted that he was notified to appear on August 28, 2006, as she received a telephone call from him inquiring about a correspondence that he received from Family Court. She stated:

I received a call from him prior to the court date in which he asked me if I had sent him something from Queens Family Court. And I told him that I did, I told him what it was, it was a petition for child support, and he told me he would not be attending because he was not served in person.

Subsequently, the Respondent failed to appear in Family Court on the August 28 date. Baca stated that she did not send anything to the Respondent directing him to appear; that it was the Family Court which sent the subpoena and relevant documents.

Baca explained that she was informed by a Family Court Magistrate on August 28 that the Respondent had been properly served. Specifically, Baca stated that she learned the subpoena had been personally served to the Respondent's uncle at 143 East 149 Street in the Bronx, which Baca stated was the Respondent's mother's address and the last known address she had for him. A duplicate copy was also served via the Postal Service to this address. She further stated that she had been informed that proper service could be made upon any relative of proper age. The matter was subsequently adjourned to an October 2006 date, which was the second Family Court date for this matter. Baca indicated that after the first court date and prior to the second court date, she had not seen or spoken to the Respondent.

Baca testified that the Respondent failed to appear on the October 2006 return date. She explained that she had a conversation with the Court Magistrate concerning the fact that the Respondent was under the impression that he had never been properly served and that, until he was served in person, he would not be attending court. Baca said that she was informed again that proper service had indeed been made upon the Respondent. Being that there was no appearance by the Respondent at this date, the matter was adjourned for November 13, 2006, which, according to the witness was the third such date thus far.

Between the second and third dates, Baca testified that she had a telephone conversation with the Respondent. She said that she telephoned him on November 12,

2006 and informed him that his presence was required in Family Court the following day. According to Baca, she also informed the Respondent that his continued failure to appear could result in the issuance of an arrest warrant so as to compel his appearance in court. In sum and substance, Baca indicated that the Respondent informed her he would not be in attendance. Specifically, he stated that he "...was not served properly. By that he meant he was not served in person. He said he had been doing this for ten years and that he knows what proper service was and that he was not properly served." The Respondent again failed to appear on the November 13 date. Baca then applied for and was granted an arrest warrant and was directed by Family Court to report to the Respondent's resident precinct for execution of this warrant. When asked if she did that, Baca stated: "No -- well, the precinct of his residence was the 40 Precinct, and I knew -- I didn't know exactly where he worked, and I didn't think that would have been accurate. So no, I didn't do that." A further adjournment of the matter was made and calendared for January 24, 2007.

There came a point in December of 2006 where Baca had the occasion to encounter the Respondent. She stated that Vanessa was in a play and that she and the Respondent were in attendance. She stated that she did not have a conversation with the Respondent on that date since it was her belief that this was not an appropriate time or place to discuss the arrest warrant or the impending Family Court proceeding. She further stated that she didn't feel it was necessary "based on the conversation we had prior back in November because he knew where I stood and where he stood on the matter." She stated that it was at this point, for the first time, she learned that the

Respondent worked at the 42 Precinct because it was here that he gave her sister a "PBA card." The back of this card had the Respondent's command on it.

Baca indicated that on the date of her daughter's play, she was in possession of the arrest warrant. When asked if she told the Respondent that there was an arrest warrant out for him, she replied: "Well, he knew based on the conversation I had back in November that that would be the next step." When asked again if she told the Respondent on the date of her daughter's play, she stated: "No, we did not. I did not have that conversation with him."

Baca testified that on January 15, 2007, she had a telephone conversation with the Respondent. She called to inform him that she had an arrest warrant:

I made him aware that I did have an arrest warrant on my person, that I didn't really feel that it was necessary for me to serve it. I gave him another opportunity to show up on the January 24th court date without me having to serve that, and he pretty much told me that I needed to do what I had to do, that he was not going to show up.

On January 16, 2007, Baca went to the 42 Precinct for the purpose of having the arrest warrant issued by Family Court executed. Upon arriving at the precinct, she informed the Desk Officer that she wanted the warrant executed. She was escorted to the rear of the precinct where she was interviewed by a ranking officer and ultimately, the warrant was executed and the Respondent arrested and brought before Family Court the following morning.

When asked if the paperwork was ever served where the Respondent worked, Baca replied, "No...I didn't know where he worked. I only knew he worked in Yankee detail, meaning somewhere around Yankee Stadium."

On cross-examination, Baca agreed that the Respondent appeared in Family Court on January 17, 2007 whereupon the warrant was vacated. Baca acknowledged that she did not contact or serve the Respondent upon commencing the proceeding in June of 2006, nor did she mail him any correspondence saying that he had to be in court on August 28, 2006. She admitted that she did not see the Respondent between the initiation of the proceeding and the August 28 return date and she did not recall if she had called him in that time period. Baca agreed that she supplied Family Court with the last known address of the Respondent and that she was told by Family Court that he had been properly served.

Baca did not dispute the fact that she knew that the Respondent was a police officer and admitted that she informed Family Court of this fact. She acknowledged that she never received documentation from Family Court indicating proper service had been made upon the Respondent, nor did she speak to the Deputy Sheriff employed by the Department of Finance who served the Respondent's uncle with the paperwork. She admitted that her assertion that the Respondent was properly served is based solely on the conversations that she had with the Family Court Magistrate and that she did not do anything additionally to verify the service of the papers.

Baca admitted that between August 28 and the second court date in October 2006, she had no contact whatsoever with the Respondent, but she acknowledged that she knew how to reach him. When asked if, during that time period, the Respondent had contact with his daughter, Baca stated that she did not recall but then conceded that he may have. She indicated that if the Respondent did see his daughter, Baca would not be present.

Baca acknowledged that, between August and October of 2006, she took no steps on her own to let the Respondent know she was seeking child support payments. She also acknowledged that she did not tell anyone in his family.

Baca acknowledged that between October 2006 and November 13, 2006, she did converse with the Respondent to inform him that his failure to appear at the third court date could result in the issuance of a warrant. Baca agreed that she did ask Family Court to serve him again, and she was told by the Court Magistrate that the paperwork was mailed. Baca further acknowledged that the Magistrate never showed her the return receipt card or the certified sticker or any other paperwork reflecting that it was mailed, nor did she ask the Sheriff to see the paperwork. Baca agreed that the Respondent asked to be served personally and stated that he would not appear unless he was so served.

Baca admitted that she knew that the Department maintained its headquarters at One Police Plaza but she was unaware service could be made through the Police Department. When asked why she herself never served him through the Department or asked Family Court to serve him through the Department, Baca stated: "I wouldn't have known to ask that question."¹ Baca admitted that she made no attempts to find the exact location where the Respondent was working between June of 2006 and November of 2006. Baca agreed that she and the Respondent had at least two telephone conversations during this period, but noted that he refused to say where he lived when asked. Baca acknowledged that she knew where his mother lived and that was the address that she gave to serve him. She stated that the last time she knew that he lived at that address was sometime close to the date that she petitioned for child support.

¹ Baca was asked several times if she personally served the Respondent. This Court finally interjected and pointed out that Family Court tells Petitioners that they are not supposed to serve papers themselves. Counsel for Respondent withdrew and rephrased the question on the last occasion.

Baca agreed that she received the arrest warrant on November 13, 2006, but she waited nine weeks before serving this warrant at the Respondent's precinct. She agreed that it was at her daughter's play in December of 2006 that she learned where the Respondent worked. She subsequently agreed that she did not have a conversation with the Respondent at the play, but he spoke to her sister and gave her a PBA card with his precinct on it. Baca acknowledged that she did not go to the precinct on that day to have him personally served with the arrest warrant nor did she go back to Family Court to let them know where the Respondent worked or to request that they mail him any documentation about the warrant.

Baca admitted that she did have a telephone conversation with the Respondent on January 15, 2007, the substance of which was that the Respondent had not been properly served and that Baca should do what she had to do. Baca agreed that she had no recollection as to whether she asked him where he lived at this point. She also acknowledged that it was during this conversation that she informed the Respondent that she was going to go to his precinct with the warrant, and that the Respondent confirmed that he worked at the 42 Precinct at this point.

Baca agreed that she was aware that he had been a police officer for almost ten years. She also acknowledged that she knew that he worked at the "Yankee Stadium Detail," and that she informed Family Court of this fact but did not follow up as to whether or not the Court acted on this information.

Upon re-direct examination, Baca again explained that she first discovered that the Respondent worked at the 42 Precinct when he gave her sister a "PBA card" in

December of 2006. She testified that she was unaware that she had the option of going back to Family Court and requesting that the Respondent be served there at this point.

Upon re-cross examination, the witness admitted she was represented by counsel when she appeared in Family Court and that her attorney indicated that the matter was "going according to the way it should."

Baca was questioned by the Court with respect to the January 15, 2007 telephone conversation. She explained that the purpose of this conversation was to inform the Respondent that an arrest warrant had been issued and that she would prefer if he would be in attendance at the January 24th date as opposed to having to resort to serving the arrest warrant the following day. Baca stated: "He refused. He said I still have not been served in person or served properly. I will not be going, so do what you have to do."

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent was appointed to the Department on December 8, 1997. He is presently assigned to Patrol Borough Bronx, Yankee Stadium detail, and has been assigned to that detail for four years.

The Respondent indicated that he and Baca met sometime in 1993 and stated that he has a daughter in common with Baca. The Respondent stated that no one has court custody of the child, although most of the time she stays with Baca. The Respondent indicated that he never received any information in 2006 with respect to Baca filing the petition at Family Court for child support payments. Moreover, he stated that during the

summer of 2006 it came to his attention that Baca would be bringing the matter to court:

“It was sometime in the summer, I don’t recall exactly what month it was, but she had spoken to me that she intended to take it to court.” The Respondent indicated that during this conversation, he was never informed that a petition for support had already been filed with the Court.

The Respondent testified that from the summer of 2006 through January of 2007, he lived at 143 East 149 Street, apartment 5, The Bronx and has lived there on and off for about 25 years. The Respondent stated that he was living at that location when he first met Baca and that, between the time they first met to the eventual dissolution of their relationship, Baca and the child have been to this address multiple times.

The Respondent stated that during the summer of 2006, he was working out of Yankee Stadium. He indicated that prior to Baca going to court to seek support payments, he had kept in some contact with her. When asked if it ever became known to Baca that he had been working, up to that time, almost two years in the Yankee Stadium detail, the Respondent stated: “Yes, she knew.”

The witness explained that, at the time, he resided at 143 East 149 Street with his mother, grandmother, aunt and brother and that Manuel Cordova is his uncle and lives in the same apartment building as the Respondent, although not in the same apartment. According to the Respondent, Cordova has a minimal command of the English language and primarily speaks Spanish. It was not until his suspension and subsequent appearance in Family Court in January of 2007, the witness explained that he learned that a Summons and Petition had been served upon Cordova. At no point did he have a conversation with his uncle regarding his receipt of the papers. The Respondent also said

that he never had seen any paperwork from Family Court until his appearance in January, subsequent to his arrest.

The Respondent explained that he had several conversations with Baca between June of 2006 and January 15, 2007. He stated that the substance of these conversations was that Baca explained she would be seeking support payments in Family Court. He stated that he would appear in Family Court if he was "properly served." When asked what he meant by "properly served," the Respondent stated, "papers, court notification to appear in court were issued to me personally," and that he did not construe Baca's word to be sufficient or proper notice. The Respondent further added that during these conversations, he was asked where he lived and where he worked and that he furnished answers to these questions. He told Baca that he lived at 143 East 149 Street, a location that she is familiar with and has been to countless times. He further stated: "I told her I worked out of Yankee Stadium, and I gave her my exact tours, my days off. I asked her if she was going to serve me, those would be the hours that I would be working." The Respondent said he had been working at Yankee Stadium in the summer of 2006 through late September, early October. At the end of the season, he was assigned to the 42 Precinct. From June through October 2006, when the Yankee Stadium detail was still in effect, he offered that no one assigned to that detail notified him of any court proceeding.

With respect to the 143 East 149 Street address where the Respondent maintains his residence, he indicated that it is a ten-unit apartment building and that he is familiar with most of the residents therein. At no point did anyone inform the Respondent that they had inadvertently received mail for him from the Queens County Family Court, but he indicated that there have been problems receiving mail at that location. He offered

that he never received any certified mailings concerning support payments for his daughter at this location.

The Respondent testified that between August and October of 2006, no notifications were made by Family Court or Baca's family regarding his need to appear there. He stated that at the December play, he said hello to Baca but they had no conversations about the arrest warrant or an ongoing Family Court matter. He stated that he had a conversation with Baca's sister during that time, but she said nothing regarding the ongoing Family Court matter.

The Respondent explained that it was not until the day before the execution of the arrest warrant in January of 2007 that he had a conversation with Baca:

She said that—she stated that the courts had told her that I had been notified and that there was a final court date, and if I didn't appear to that final court date, that I would be served with a warrant....I said, well, I haven't officially been notified to appear in court, so you do what you have to do.

The Respondent indicated that he was arrested the day following the aforementioned conversation and suspended from the Department thereafter. He stated that he was taken to Family Court the next morning, where the warrant was vacated and he was issued a court date to appear in Family Court. Lastly, the Respondent indicated that the matter has since been resolved.

Upon cross examination, the Respondent agreed that, on October 12, 2006, he was assigned to the 42 Precinct; however, in the summer he works out of Yankee Stadium performing security duties. He stated that he performed security outside in front of Gate Two, which was always a fixed post. He further stated that he told Baca that he worked in front of Gate Two, although he did not recall when he told her that. He

acknowledged that he and Baca had a conversation sometime in the summer of 2006 whereby she indicated she would be seeking child support for their daughter. Prior to this point, the two had a verbal agreement in place for support payments.

When questioned about his residence, the Respondent did admit that he lives at 143 East 149 Street in apartment 5, and that there is only one apartment 5 in the building. He agreed that his uncle, who also lives in this building, in apartment 7, is in his 60s and has a limited use of the English language. The Respondent was unable to recall if on July 25, 2006—the day of service to his uncle—his uncle was in the Respondent's apartment. He did not recall if he came home that evening or if he saw his uncle at any time in July of 2006, since his uncle worked during the day and the Respondent worked at night. Further, the Respondent denied that his uncle ever informed him that papers had been left for him and that he was not informed of this fact by any other relative. When questioned if he ever asked his uncle where the papers were, the Respondent stated: "How can I ask him? I never knew I was served."

When asked if there was a time between January 17, 2007 (when he found out in Family Court that his uncle had signed for some papers) and July 24, 2008 where he asked his uncle about the papers, the Respondent stated that he did not and said that since he rarely sees his uncle, he has not had the opportunity to ask him or speak to him about whether someone gave him something in regards to a court appearance. The Respondent agreed that his uncle lives two doors away from him, in the same apartment building. He denied seeing him between January 17, 2007 and the date of this hearing and then conceded that in the year and a half time span that he saw his uncle "maybe twice."

When questioned about a conversation with Baca, the Respondent agreed that she told him that she was informed by Family Court that proper service had been made, but he told her that he had not been served. He noted that she did not indicate how Family Court said he had been served. He also agreed that he told Baca that he would not be attending court because he was not served properly and that he did not have any papers stating he had to appear:

“Q: And you also told her you are not coming there [to Family Court], you are not going to court if you are not served properly?

A: Yes, I told her I was not served properly. I don’t have any papers stating that I have to appear in court. There is no reason for me to show up.”

The Respondent admitted that he had never had any prior dealings with Family Court.

The Respondent acknowledged that at no point did he speak to Family Court, an attorney or the PBA with respect to the fact that he was being informed by Baca that she had initiated a proceeding, that he did not receive papers to that effect and that she was claiming service had been made. He further agreed that on January 15, 2007, when he was informed that an arrest warrant would be executed that he never called the PBA office, an attorney or Family Court to seek advice or inquire if he could be arrested despite the fact that he did not see any paperwork. He offered that he did not believe Baca that a warrant had been issued and again, denied that a letter with an enclosed subpoena for him to appear in Family Court arrived at his apartment. The Respondent maintained that the only knowledge that he had about this proceeding was from communications with Baca.

FINDINGS AND ANALYSIS

The Respondent is charged in one specification with having failed to appear in Queens Family Court and having been arrested on the arrest warrant that resulted from that failure to appear. There is no dispute of the fact that the Respondent did not appear in a Family Court action involving child support and, as a result, a warrant was issued for his arrest. Further, there is no dispute that he was arrested and brought to Family Court by other members of the service.

The Respondent's defense is that he was not personally served and thus did not have to appear in Family Court and that he did not know that an arrest warrant had been issued. These defenses are without merit and I find the Respondent guilty as charged.

Service of Process

The Respondent seems to hold the belief that the only way he could be served was with personal delivery to him. Under the New York State Civil Practice Law and Rules § 308 personal service can be accomplished, "by delivering the summons within the state to a person of suitable age and discretion at the ... usual place of abode of the person to be served and by ... mailing the summons to the person to be served at his or her last known residence....," (CPLR § 308 (2)).

Department's Exhibit (DX) 1 consists of certified copies of portions of the official court records in the Family Court matter. These documents indicate that service of the Family Court petition along with the summons mandating the Respondent's appearance was accomplished by giving them to a person of suitable age and discretion at his home

on July 25, 2006. There was also a mailing of those documents to the Respondent at the address he acknowledges is his residence.

The actions of the Family Court in issuing a warrant are presumptively valid however in this case the Department has provided the underlying documents to this Court and it is clear that the Family Court had jurisdiction and properly issued the arrest warrant. Moreover, if the Respondent contends that the service was not valid, the proper forum in which to have challenged that was in the Family Court, something which he could have done and apparently chose not to do.

Actual Notice of the Pending Family Court Matter

Even if one were to accept the Respondent's incredible claim that he did not receive the documents by mail or from his uncle, the Respondent clearly was aware of the pendency of a Family Court matter against him and should have taken action.

By his own testimony he knew about the case. Baca told him that she was proceeding in Family Court. Even if he was not properly served and was not mandated to appear, a reasonable and responsible person would make some inquiry to determine if a case was going forward against him or her. While self interest should have been a sufficient motivating factor to cause him to check with an attorney or call Family Court on his own, as a law enforcement officer he had an obligation to make sure that he was not going to be the subject of an arrest warrant or other action as a result of an unanswered child support matter.

Actual Notice of the Substitute Service

The Respondent seems to claim that he did not receive any of the documents served on him. This testimony defies credulity and is simply unworthy of belief.

The Certificate of Service (see DX-1) signed by Deputy Sheriff Jackson indicates that he went to 143 East 149 Street in Bronx County and served a person named Manuel Cordova who described himself as the Respondent's uncle, on July 25, 2006. The Respondent acknowledges that he has an uncle by that name who lives in the building. Clearly Jackson went to the building where he met and communicated with a man who identified himself, accurately, as the Respondent's uncle.

The Respondent claims that his uncle never told him about the summons and in all the time since that day he has never discussed the matter with his uncle.

As to the copy of the documents served by mail, the Respondent's testimony that he has trouble with the mail at that location is unconvincing. Moreover, Baca credibly testified that in one of their telephone conversations, prior to the August 28, 2006 adjournment date, the Respondent asked about the documents she had caused to be mailed to him from Family Court.

It is apparent that the Respondent in fact received one or both of the packages of documents but did not believe that he had been properly served because the papers were not given to him in person.

Actual Notice of the Arrest Warrant

Both Baca and the Respondent acknowledge that they had a conversation on January 15, 2007. According to the Respondent, Baca told him that she was going to

have a warrant issued for his arrest. According to Baca she told him that an arrest warrant had been issued and that she had it in her possession. She said she told him that she did not want to have him arrested and that he should come to Family Court on the next date. He told her that she should do what she had to do so the next day she had him arrested.

I find Baca's account of what was said in the conversation of January 15, 2007 wholly credible. As noted above the Respondent has demonstrated a lack of credibility in these proceedings. Further, Baca's testimony reflects the reality of the situation in that an arrest warrant had already been issued.

Thus the Respondent knew the day before he was arrested, that an arrest warrant existed and yet he allowed the warrant to fall rather than vacating it himself. While there are many things he could have and clearly should have done before January 15, 2007 to ameliorate this situation, his failure to take action after the conversation with Baca on that day is significant misconduct in and of itself.

For all of these reasons, the Respondent's claimed defenses should be rejected.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on December 8, 1997. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

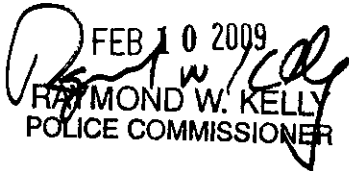
In this case the Respondent clearly engaged in conduct prejudicial to the good order efficiency and discipline of this Department by failing to appear in Family Court when duly summoned to do so and by causing other members of this Department to have to take him into custody and bring him to Family Court pursuant to that arrest warrant.

The Respondent has already served 17 days on pre-trial suspension. The Department Advocate has recommended that as the penalty in this case. Having reviewed the entire circumstances of this case this Court recommends that the Respondent forfeit 13 vacation days and the 17 pre-trial suspension days that he has already served, for a penalty forfeiture of a total of thirty (30) days.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner-Trials

APPROVED


FEB 10 2009
RAYMOND W. KELLY
POLICE COMMISSIONER